

🛡️ DIGITAL INDIA ADVOCACY

India's DPDP Act, 2023

A Simple, Student-Friendly Guide to the Digital Personal Data Protection Act

EMPOWERING CITIZENS • SAFEGUARDING PRIVACY • FOSTERING TRUST

PART 01

Foundations of Digital Privacy

Every click, swipe, and login leaves a trail of data. Let's learn about the basic building blocks of data privacy under India's breakthrough regulatory act.

| What is Personal Data?

Personal Data

Any information about a person that makes them easily identifiable. If someone can pinpoint exactly who you are using a piece of information, that is personal data.

Common Examples: Your full name, physical address, email ID, mobile phone number, fingerprint scans, or medical records.

Digital Personal Data

Personal data that is either collected in digital form online, or collected physically on paper and subsequently scanned/digitized into a computer database.

DPDP Scope: The Act specifically protects this digital data footprint which apps and online platforms process daily.

Meet the Main Characters



1. Data Principal

The individual to whom the personal data belongs. If you are an app user, **YOU are the Data Principal!** Your data, your rights.



2. Data Fiduciary

The company, organization, or platform (like school boards, Instagram, or gaming apps) that decides **why & how** to collect your data.



3. Data Processor

Any external service provider or backend business that processes personal data **on behalf of** the Data Fiduciary (e.g., cloud hosting services).

Journey of the DPDP Act

July 2018

Srikrishna Committee: Submits the first comprehensive report on Indian Data Protection.

Aug 2023

The Final Act: Enacted by the Parliament and signed into Law by the President of India.

Aug 2017

Puttaswamy Verdict: Supreme Court of India declares privacy a Fundamental Right.

Nov 2022

Public Draft: MeitY releases public-centric draft receiving over 24k civic responses.

PART 02

Core Principles & Rights

How must platforms handle your data responsibly, and what rights do you hold under India's legal framework?

| The Golden Rules of DPDP

- ✔ **Consent-Based:** Data can only be taken for lawful reasons, with your clear and specific permission.
- 📣 **Purpose Limitation:** Platforms must only use your data for the exact reason they collected it (no selling contact numbers without consent!).
- ⚡ **Data Minimization:** Apps should only gather what's absolutely necessary. A calculator app has no right to ask for contact lists or camera access.
- 🗑️ **Storage Limitation:** Once the purpose is completed (e.g., closing your account), companies must delete your data permanently.

| Your Rights Under the Act



1. Right to Access

You can demand a clear summary of what data a company possesses about you, how they process it, and which third parties it was shared with.



2. Correct & Erase

You have the absolute right to correct inaccurate data, update old details, or request total erasure (deletion) of your digital records.



3. Redress Grievances

If a platform breaches your privacy, you have the right to file an official complaint. They must provide an easy redressal process.

| With Rights Come Duties!

-  **Provide Real Information:** You must never provide fake or synthetic information when registering for online accounts or claiming rights.
-  **No Frivolous Complaints:** Do not file fake, malicious, or misleading complaints against companies or platforms just to trouble them.
-  **No Impersonation:** You are strictly forbidden from pretending to be another person or submitting fake IDs when registering for verification.

Child Data Protection

-  **Parental Consent Required:** For anyone below 18 years, platforms must get verifiable parental/guardian consent before taking data.
-  **No Tracking or Monitoring:** Companies are completely banned from tracking children's digital activity or search histories.
-  **No Harmful Ads:** Platforms cannot display targeted advertisements designed to manipulate children or exploit their habits.



Penalties for Violations

BREACH & OFFENSE BY PLATFORM / USER	MAX STATUTORY PENALTY	PURPOSE & PUBLIC IMPACT
Failing to prevent data breaches (e.g., hacker leaks)	Upto ₹250 Crore	Forces platforms to invest in world-class cybersecurity tools.
Failing to notify the DPBI & users of a major breach	Upto ₹200 Crore	Ensures companies are fully transparent if data is ever compromised.
Violating special protections for children	Upto ₹150 Crore	Protects young minds and online habits from corporate exploitation.
Breach of Duties by individual Users (Data Principals)	Upto ₹10,000	Discourages individuals from filing fake or harassment complaints.



Secure Your Digital Future

The DPDP Act, 2023 is India's massive leap toward creating a secure, respectful, and completely transparent digital economy. Understanding your rights is the first step in protecting your digital footprints!



www.meity.gov.in



dpa-helpdesk@meity.gov.in